



Yorkshire Water Authority (River Derwent) Act 1976

CHAPTER xxiv

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Control of vessels with sanitary appliances.
4. Duty of Authority to deal with waste from vessels, etc.
5. Byelaws.
6. Vessels to which Act applies to have and display certificates.
7. Issue of certificates.
8. Issue of certificates to powered boats to be subject to compliance with fitness conditions.
9. Charges for certificates.
10. Book to be open to inspection.
11. Agreements with navigation authorities.
12. Exemption from certification.
13. Rights of entry and inspection.
14. Service of documents.
15. Notice of certain provisions of Act.
16. Application of section 108 (3) of Act of 1974 to Act.

ELIZABETH II



1976 CHAPTER xxiv

An Act to confer further powers on the Yorkshire Water Authority to preserve the purity of the water of the navigable stretch of the river Derwent by preventing the discharge of polluting matter from vessels; and for other purposes. [29th July 1976]

WHEREAS the Yorkshire Water Authority (hereinafter in this Act referred to as "the Authority") were constituted in pursuance of the Water Act 1973 as the Authority 1973 c. 37. responsible for a number of important functions including in particular water conservation and the prevention of pollution within an area which includes the county of West Yorkshire and parts of the counties of Cleveland, Derbyshire, Greater Manchester, Humberside, Lancashire, North Yorkshire and South Yorkshire:

And whereas the river Derwent is one of the main sources of water supply within the area of the Authority and its importance as a source of water supply will increase in the future:

And whereas under and by virtue of an Act of Parliament for making the river Derwent in the county of York navigable

passed in the first year of the reign of Her Majesty Queen Anne, Chapter 27, powers were conferred upon certain persons, their heirs and assigns to make navigable the river Derwent from Scarborough Mills to New Malton and from thence to its confluence with the river Ouse at Hemingborough, and from time to time to continue to support and maintain such navigation:

1930 c. 44.

And whereas under the said Act the river Derwent was made navigable from Yedingham Bridge to its confluence with the river Ouse and for many years was extensively used for commercial navigation but in the last century the navigation declined and by the River Derwent Navigation Act Revocation Order 1935, made under section 41 of the Land Drainage Act 1930, the Act referred to in the last preceding recital was revoked and certain property belonging to the undertakers of the navigation was transferred to the River Ouse (Yorks) Catchment Board, one of the authorities whose functions are now vested in the Authority:

And whereas the river Derwent and the country through which it flows is an area of great natural beauty and the navigation of the river has been improved by the construction at its confluence with the river Ouse of the Barmby Tidal Barrage, which incorporates a tidal lock, and by the reconstruction of the Elvington Lock and will be further improved when funds are available to reconstruct and repair other locks:

And whereas the river Derwent has become increasingly popular for boating and other forms of recreation and its popularity for boating has been enhanced by the improvement of the navigation and will be further enhanced as and when the navigation is further improved:

And whereas the purity of the waters of the river Derwent is threatened by discharges of polluting matter from the boats now using the river and the threat will continually grow in gravity as the navigation is improved and the number of boats increase:

And whereas to preserve the purity of the waters of the river Derwent against polluting matter discharged from boats it is expedient and in the public interest that there should be conferred on the Authority such further powers to prevent pollution as are in this Act provided:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Yorkshire Water Authority Short title. (River Derwent) Act 1976.

2.—(1) In this Act unless the subject or context otherwise Interpretation. requires—

“ the Act of 1951 ” means the Rivers (Prevention of Pollution) Act 1951; 1951 c. 64.

“ the Act of 1974 ” means the Control of Pollution Act 1974; 1974 c. 40.

“ the Authority ” means the Yorkshire Water Authority;

“ book ” includes any other record in writing;

“ certificate ” means a certificate issued under paragraph (c) of subsection (1) of section 7 (Issue of certificates) of this Act;

“ the first appointed day ” means 31st December, 1976, or such subsequent date not later than 31st December, 1977, as may be appointed by the Authority and “ the second appointed day ” means the date two months after the date on which any byelaws made under paragraph (a) of subsection (1) of section 5 (Byelaws) of this Act come into force;

“ fitness conditions ” means the requirements of the byelaws made under paragraph (a) of subsection (1) of section 5 (Byelaws) of this Act;

“ fuel ” means any hydrocarbon (either alone or in admixture with any other liquid) which is capable of providing the necessary motive power for a vessel;

“ powered boat ” means any vessel propelled by or fitted with an internal combustion engine using fuel;

“ prescribed ” means prescribed by regulations made by the Secretary of State for the purposes of the Act of 1974 or, to the extent that there are no such regulations, prescribed by byelaws made under section 5 (1) (c) of the Act of 1951 in pursuance of the provisions of section 3 (Control of vessels with sanitary appliances) of this Act;

“ the river ” means that stretch of the river Derwent which is downstream of the bridge partly in the parish of Yedingham and partly in the parish of Ebberston in the district of Ryedale in the county of North Yorkshire known as Yedingham Bridge, and is upstream of the sluices and navigation lock forming part of Work No. 2

authorised by the Yorkshire River Authority (Barmby Tidal Barrage) Order 1972, and includes any inlet, lock or cut (other than any part of the Pocklington Canal within the jurisdiction of the British Waterways Board) in or adjoining that stretch;

“sanitary appliance” means a water closet or other prescribed appliance (except a sink, a bath and a shower-bath) which is designed to permit polluting matter to pass into the water on which the vessel in question is for the time being situated;

1968 c. 59. “vessel” includes a hovercraft within the meaning of the Hovercraft Act 1968.

(2) References in this Act to any enactment, order or byelaw are references to it as amended by any subsequent enactment, order or byelaw.

Control of
vessels with
sanitary
appliances.

3.—(1) Section 5 (1) (c) of the Act of 1951 (which enables a water authority to make byelaws for prohibiting or regulating the keeping or use on a stream of a vessel provided with sanitary appliances from which polluting matter passes or can pass into the stream) shall have effect as if—

(a) the river were a stream within the meaning of that Act notwithstanding any flow of tide in it; and

(b) the reference to sanitary appliances were references to sanitary appliances as defined in this Act.

(2) Subsection (7) of the said section 5 (which provides for a fine not exceeding £50 for contravention of byelaws made in pursuance of subsection (1) (c) of that section and a fine not exceeding £5 a day for a continuing contravention) shall, in its application to a contravention of a byelaw made in pursuance of subsection (1) (c) of that section relating to the river, have effect as if for £50 there were substituted £200 and the provision about a continuing contravention were omitted.

(3) The Authority shall, at the request of a person in charge of a vessel in, or about to enter, the river, cause any sanitary appliances in the vessel, or the vessel itself, to be sealed so as to prevent matter passing from the appliance into the river.

(4) (a) While a sanitary appliance or a vessel is sealed under subsection (3) above that appliance or vessel shall be regarded as not contravening any byelaws made by virtue of subsection (1) above.

(b) Where a sanitary appliance or a vessel has been sealed otherwise than in pursuance of a request made under subsection (3) above, and has been so sealed to the satisfaction of the Authority, paragraph (a) above shall apply as if it had been sealed in pursuance of such request.

(5) Nothing in this section shall affect the operation of section 33 (2) of the Act of 1974 (which enables the Secretary of State by order to provide that byelaws made under section 5(1)(c) of the Act of 1951 shall have effect with modifications as if made under section 33 (1) of the Act of 1974).

(6) Section 11 (1) (b) of the Rivers (Prevention of Pollution) Act 1961 (which prohibits the taking of proceedings for an offence under the Act of 1951 until after the expiration of one month after notice has been given that proceedings are being considered) shall not apply to proceedings for a contravention in the river of byelaws under section 5 (1) (c) of the Act of 1951. 1961 c. 50.

(7) This section shall come into force on the first appointed day.

4.—(1) It shall be the duty of the Authority—

Duty of
Authority to
deal with
waste from
vessels, etc.

(a) to arrange for the collection and disposal, as from the first appointed day, of waste from vessels in the river which appears to the Authority to need collection in consequence of the provisions of byelaws made under section 5 (1) (c) of the Act of 1951; and

(b) to arrange for the provision, as from that day, of facilities for the washing out of sanitary appliances and any other appliances in respect of which the Authority have made byelaws under paragraph (c) of subsection (1) of section 5 (Byelaws) of this Act from vessels in the river.

(2) The Authority may arrange for the provision of facilities by way of water closets, urinals and wash basins for the use of persons from vessels in the river.

(3) No charges shall be payable for services provided under this section in respect of a vessel certified, or deemed to be certified, under this Act or in respect of persons from such vessels.

5.—(1) The Authority may make byelaws for all or any of the following purposes:—

(a) for prohibiting or regulating the keeping or use on the river of any powered boat so as to prevent or minimise the escape or emission of fuel from the boat into the river and for that purpose to prescribe standards or specifications with regard to the construction, maintenance and use of engines, apparatus, fittings and equipment;

(b) for prohibiting the mooring, anchoring or securing of vessels in such parts of the river in the vicinity of a protected intake as may be designated by byelaws made by the Authority;

- (c) for specifying which appliances (other than sanitary appliances) are appliances for which facilities are to be provided under paragraph (b) of subsection (1) of section 4 (Duty of Authority to deal with waste from vessels, etc.) of this Act.

(2) If any person contravenes, or fails to comply with, any byelaws made by virtue of this section he shall be guilty of an offence and liable on summary conviction to a fine not exceeding £50; and if the contravention or failure to comply is continued after the conviction, he shall be guilty of a further offence and liable on summary conviction to a fine not exceeding £5 for each day on which it is so continued.

(3) In this section "protected intake" means the Elvington Intake being Work No. 1 authorised by the Sheffield Water Order 1961, the intake and pumping station being Work No. 1 authorised by the Kingston upon Hull Water Order 1973 and any other intake for the abstraction of water from the river which the Authority may be authorised to construct by any enactment passed after this Act.

Vessels to which Act applies to have and display certificates.

6.—(1) This section applies to powered boats and to vessels provided with one or more sanitary appliances.

(2) As from the first appointed day, no vessel to which this section applies shall be in the river unless it is certified under section 7 below or deemed to be so certified, and, in the case of a certified vessel, the certificate is conspicuously displayed on the outside of the vessel.

(3) The owner of a vessel or other person having charge of the vessel, who causes or knowingly permits a contravention of subsection (2) above shall be liable on summary conviction to a fine not exceeding £50:

Provided that no offence is committed by any person other than the owner under this section unless either—

- (a) he has been notified by an authorised officer of the Authority of the requirements of subsection (2) above; or
- (b) twenty-eight days have elapsed since he took charge of the vessel or, where he took charge of the vessel elsewhere than in the river, the vessel entered the river.

Issue of certificates.

7.—(1) The Authority on payment to them of the charge (if any) determined under section 9 (Charges for certificates) of this Act for the issue of a certificate in respect of a vessel to which section 6 (Vessels to which Act applies to have and display certificates) of this Act applies and receipt by them on a form which shall be supplied by them on demand of such particulars as they shall from time to time require, shall—

- (a) assign to such vessel a number;

(b) enter such vessel in a book to be kept by them at any office which they shall designate for that purpose together with the several particulars aforesaid and the number assigned to such vessel; and

(c) issue to the applicant a certificate bearing the number assigned to such vessel.

(2) A certificate issued in respect of a vessel to which this Act applies shall be in force for such period as shall be specified thereon being not less than twelve months from the date of issue and shall then expire.

(3) In this section "number" includes such mark or other form of identification as may be assigned by the Authority to a vessel.

8.—(1) Notwithstanding anything in section 7 (Issue of certificates) of this Act the Authority shall not as from the second appointed day be required to issue a certificate in respect of a powered boat unless it complies with the fitness conditions.

Issue of
certificates to
powered boats
to be subject
to compliance
with fitness
conditions.

(2) As from the second appointed day, the Authority may cancel a certificate issued in respect of a powered boat which does not comply with the fitness conditions and thereupon the certificate shall cease to be in force.

(3) (a) Any person aggrieved by the refusal of the Authority under subsection (1) of this section to issue a certificate in respect of a powered boat or by the cancellation under subsection (2) of this section of a certificate issued in respect of such a boat may appeal to a magistrates' court.

(b) Sections 300 and 302 of the Public Health Act 1936 (which deal with appeals and applications to courts of summary jurisdiction and the effect of the decision of a court upon an appeal) shall apply to appeals to a magistrates' court under this subsection and those sections as so applied shall have effect as if references therein to that Act and to a council were references to this Act and to the Authority.

9.—(1) There shall be paid to the Authority for the issue of a certificate such reasonable charge as the Authority may from time to time determine and different charges may be made for different classes of vessels to which this Act applies.

Charges for
certificates.

(2) No such charge shall be payable in respect of a vessel to which this Act applies belonging to or solely employed in the service of any highway authority, police authority or fire authority for the purpose of the exercise of their functions.

Book to be open to inspection.

10. Every person shall be entitled during office hours without payment to inspect any book for the entry of vessels to which this Act applies required by paragraph (b) of subsection (1) of section 7 (Issue of certificates) of this Act to be kept by the Authority and every person shall be entitled, on application, to be furnished with an extract from any such book on payment of such reasonable charge as the Authority may determine.

Agreements with navigation authorities.

11. The Authority may enter into an agreement with any navigation authority which is authorised to require licensing or certification of vessels navigating any waterway under the jurisdiction of that authority for the purpose of integrating or co-ordinating the administration of provisions of this Act regarding the issue of certificates with the administration by that authority of provisions regarding the licensing or certification of vessels and without prejudice to the generality of the foregoing such an agreement may provide for treating licences or certificates issued by that navigation authority as certificates.

Exemption from certification.

12. The Authority may on such terms and for such periods as they think fit grant exemption from the requirements of sections 6 to 10 of this Act in respect of any vessel or class or description of vessel and a certificate shall be deemed for the purposes of this Act to have been issued in respect of any vessel while so exempted.

Rights of entry and inspection.

13. As from the first appointed day so many of the provisions of sections 91 and 92 of the Act of 1974 (which confer rights of entry and inspection, etc., and make provision supplemental thereto) as apply to vessels and to articles on vessels shall apply and have effect for the purposes of this Act as they apply and have effect for the purposes of that Act.

Service of documents.

14. Section 95 of the Act of 1974 (which makes provision for the service of documents on and by water authorities) shall apply to the giving and service of documents which the Authority are required or authorised by this Act to give or serve as it applies to the giving and service of documents required or authorised by the Act of 1974 to be given or served.

Notice of certain provisions of Act.

15.—(1) The Authority shall—

- (a) not less than one month before the first appointed day cause public notice to be given of that day and of the general effect of section 3 (Control of vessels with sanitary appliances), section 6 (Vessels to which Act applies to have and display certificates) and section 7 (Issue of certificates) of this Act;

- (b) not less than one month before the second appointed day cause public notice to be given of that day and of the general effect of section 8 (Issue of certificates to powered boats to be subject to compliance with fitness conditions) of this Act.

(2) Public notice to be given under subsection (1) of this section shall be given by advertisement in one or more local newspapers circulating in the counties in which the river is situated and by notices conspicuously displayed in such one or more places on or adjacent to the river as the Authority consider appropriate for bringing its contents to the notice of persons using or navigating the river.

(3) In any proceedings it shall be presumed until the contrary is proved that the provisions of this section have been complied with.

16. Section 108(3) of the Act of 1974 (which enables the Secretary of State to repeal or amend local Acts passed before that Act or orders or instruments made under such an Act) shall have effect as if this Act had been passed before that Act.

Application of
section 108 (3)
of Act of 1974
to Act.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR HAROLD GLOVER

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

22p net

ISBN 0 10 512476 1